

Vijay Shukla v. Uttar Pradesh Power Ltd.

High Court of Judicature at Allahabad · Division Bench · 10 August 2022 · Writ-C No. 22798 of 2022 · **Writ disposed; liberty to file clause 6.5 objection; coercive action stayed eight weeks.**

HEADNOTE

A consumer's writ seeking consideration under a one-time settlement scheme and restraint on surcharge was disposed without examining merits. On the distribution licensee's statement that an objection to the impugned demand would be decided in a time-bound manner, the Allahabad High Court granted liberty to file an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided preferably within four weeks after hearing, and stayed coercive action on the demand for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Vijay Shukla petitioned the Allahabad High Court for mandamus directing Uttar Pradesh Power Ltd. and the distribution licensee to consider his case under the one-time settlement scheme dated 31 May 2022, extended till 15 July 2022, and to refrain from imposing surcharge or penalty after adjusting amounts already deposited. Counsel for the Power Distribution Corporation stated on instructions that the petitioner could object to the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-demand-objection

HOLDING

Without expressing any opinion on merits, the writ is disposed of with liberty to the petitioner to submit an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005 before respondent No. 3 within four weeks; if so submitted, it shall be decided in accordance with law, expeditiously, preferably within four weeks, after reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ seeking OTS consideration and restraint on surcharge was disposed without merits adjudication, relegating the consumer to a clause 6.5 objection against the impugned demand. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The Court treated the impugned demand as a matter for a statutory clause 6.5 objection before the named officer, to be decided after hearing within a fixed outer period. ¶ 1

6.5-representation-as-appropriate-remedy On the licensee's statement, a clause 6.5 representation was the appropriate forum; coercive recovery was stayed only until that objection is decided or eight weeks, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO THE ONE-TIME SETTLEMENT SCHEME DATED 31.05.2022 (EXTENDED TILL 15.07.2022)

Mandamus to consider the OTS was prayed; the Court expressed no opinion on merits. ¶ 1

NOT DECIDED — WHETHER SURCHARGE OR PENALTY MAY BE IMPOSED AFTER ADJUSTING AMOUNTS ALREADY DEPOSITED

¶ 1

NOT DECIDED — CORRECTNESS OF THE IMPUGNED DEMAND

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.